



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

April 28, 2022

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 10704
(NINETEENTH REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain DOT Specification 2Q containers with Division 2.2 materials. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.302(a) in that DOT Specification 2Q containers are not authorized for the materials listed in paragraph 6, except as specified herein; Part 172, Subpart C unless transported by air; Part 172 Subpart E in that no labeling is required unless transported by air; Part 172 Subpart F in that placarding is waived; and Part 174 and Part 177 in that the modal requirements are waived.
5. BASIS: This special permit is based on the Pipeline and Hazardous Materials Safety Administration's Show Cause Letter issued in accordance with § 107.121(a) initiated on March 14, 2022.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Air, compressed	2.2	UN1002	N/A
Compressed gas, oxidizing, n.o.s.*	2.2	UN3156	N/A
Compressed gas, n.o.s.* or proper shipping name as specified in § 172.101	2.2	UN1956 or As Appropriate	N/A
Nitrogen, compressed	2.2	UN1066	N/A

*Requires technical name in accordance with § 172.203(k).

7. SAFETY CONTROL MEASURES:

a. PACKAGING: Packagings prescribed are seamless DOT Specification 2Q containers not exceeding one-liter capacity and having a minimum burst pressure of 313, 360, or 464 psig. Containers must be shipped as follows:

- (1) The pressure in the container with a minimum burst pressure of 313 psig may not exceed 135 psig at 70 °F and 155 psig at 130 °F.
- (2) The pressure in the container with a minimum burst pressure of 360 psig may not exceed 160 psig at 70 °F and 180 psig at 130 °F.
- (3) The pressure in the container with a minimum burst pressure of 464 psig may not exceed 224 psig at 70 °F and 242 psig at 130 °F.
- (4) The containers must be packed in strong outside packagings.
- (5) Each strong outside package may not exceed 66 pounds gross weight.

b. TESTING: Each completed container filled for shipment must have been heated until the pressure in the container is equivalent to the equilibrium pressure of the content at 130 °F without evidence of leakage, distortion, or other defect.

c. OPERATIONAL CONTROLS: Shipments are not subject to the shipping paper requirements of Subpart C of Part 172 unless offered for transportation by aircraft. Shipments are not subject to the labeling requirements of Subpart E of Part 172 except

when offered for transportation by air. The CARGO AIRCRAFT ONLY label must be printed or affixed to a surface (other than the bottom) of each package in proximity to the required marking and labeling on each package intended for transportation by air. Shipments are not subject to the placarding requirements of Subpart F of Part 172; to Part 174 or to Part 177.

d. Oxidizing gases are not authorized to be transported aboard cargo-only aircraft under the terms of this special permit.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modifications or change are made to the inner packaging or its contents and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. MARKING: Each outer package must meet the marking requirements of Subpart D of Part 172 and be marked "DOT-SP 10704".

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel, and cargo-only aircraft (see paragraph 7.d. for restrictions).

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each aircraft used to transport packages covered by this special permit. The shipper must furnish a current copy of this special permit to the air carrier before or at the time the shipment is tendered.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq.:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

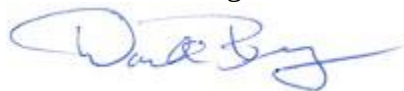
Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) – “The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: BenM/NICKS